

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN COSTA RICA

Complete Community Opposition How-To

*This guide uses the Costa Rican terms and bodies you'll actually run into — SETENA's **viabilidad ambiental**, the **recurso de amparo** before the Sala IV, the **Tribunal Ambiental Administrativo**, the **contencioso-administrativo** courts — and explains each in plain words the first time.*

INTRODUCTION & FRAMEWORK

At **Crucitas**, in the forests of Cutris de San Carlos near the San Juan River, a Canadian company called Infinito Gold planned an open-pit gold mine — and to clear the way, in 2008 the government of President Óscar Arias granted the concession and issued a decree declaring the mine "of national interest," overriding a forest-clearing moratorium. Against it stood the communities of the north, organised as the **Frente Norte de Oposición a la Minería**, alongside conservation groups like **APREFLOFAS** and a biologist, Jorge Lobo, who took the government's own paperwork apart. They went to court. On **14 December 2010**, the **Tribunal Contencioso Administrativo** annulled the whole edifice — SETENA's environmental viability, the modification approval, the mining concession, and the presidential decree — ordered the company to pay for the environmental damage and restore the site, and recommended that the ex-President and the officials involved be investigated. In **2011 the Sala Primera** — the highest civil chamber of the Supreme Court — **confirmed it**. That same year, Costa Rica's Congress went further and passed a law **banning open-pit metal mining** in the country outright. When the company took Costa Rica to international arbitration, it **lost** — the tribunal declined to award it a cent.

The Frente Norte de Oposición a la Minería drew on tools available to communities across Costa Rica — an unusually strong toolkit for a small country. The Constitution guarantees the right to a **healthy and ecologically balanced environment (Article 50)**. The **Sala Constitucional (Sala IV)** hears fast, free, form-free constitutional complaints (**recursos de amparo**) that anyone can file, and protest, petition, and litigation are lawful, with courts that genuinely use them. The **contencioso-administrativo** courts annul unlawful official acts — as they annulled the whole Crucitas edifice, concession and presidential decree alike. And an **environmental prosecutor and tribunal**, a strong tradition of the **precautionary principle**, and a **free press** round it out. But these tools have real limits, and this guide states them plainly. The Crucitas fight took the north's communities the better part of **two decades**; illegal miners later moved into the abandoned site, bringing **mercury and violence**; and even now there are political pushes to **"revive" Crucitas** under a new framework. A won fight can be reopened, and in Costa Rica, as everywhere, a legal victory has to be defended.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Costa Rican project needs its **environmental viability (viabilidad ambiental)** from **SETENA**, resting on an impact study; it needs sectoral concessions and permits from **MINAE** and others; it must respect protected areas and the Article 50 right; and it can be frozen by an **amparo** or annulled by the **contencioso** courts. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If a right is being violated or the process was unlawful, the courts genuinely bite** — the Sala IV's amparo is fast and free, and the contencioso courts annulled the whole Crucitas approval.
- **If the study is flawed or the precautionary principle applies, that's a real lever** — Costa Rican judges take environmental protection seriously.
- **If the government backs the project, it can still be beaten in court — but a win must be defended**, because political winds shift and abandoned sites can be reopened.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the amparo, the impact-study participation, the precautionary principle, the contencioso courts — and **run every front at once**: the documents, the participation, the courts, the movement, the press. That's how Crucitas was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental decision is the **viabilidad ambiental** (environmental viability), issued by **SETENA** (Secretaría Técnica Nacional Ambiental) on the basis of an impact study. Sectoral approvals — a mining concession, a water concession, a forest-clearing permit — come from **MINAE** (the environment ministry) and its directorates. Municipalities control local land use. And protected areas are managed by **SINAC**. Know which decision you can contest, and aim there — at Crucitas, the community attacked *all* of them.

How a Project Moves — and Where You Jump In

The impact study and viabilidad ambiental. The developer files the environmental study; SETENA reviews it, with public participation, and grants or refuses viability. *Your opening* — and it arms every later step: participate, and pick the study apart. At Crucitas, SETENA's failure to require a fresh study after the project changed was a fatal flaw.

The concessions and permits. MINAE grants the mining or water concession; other permits follow. *Your opening*: a concession granted unlawfully — during a moratorium, say — can be annulled.

Construction and operation. *Your opening*: an amparo to freeze a rights violation fast, or a complaint to the environmental tribunal.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure, and a foreign miner has a reputation and investors to protect. **What it still needs** — the viability not final or under challenge, the concession not granted, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and investors with their own environmental standards.

Who's Supposed to Be Watching

Each is an ally or an arena. **SETENA** runs the environmental viability and can be pressed. **MINAE** and its directorates grant the concessions. The **Sala Constitucional (Sala IV)** hears amparos on the Article 50

right, fast and free. The **contencioso-administrativo courts** annul unlawful acts, up to the **Sala Primera**. The **Tribunal Ambiental Administrativo (TAA)** hears environmental complaints. The **Defensoría de los Habitantes** (Ombudsman) takes complaints against the administration. And Costa Rica's **strong environmental movement, its community fronts, and a free press** are the forces that reach furthest — the combination that carried Crucitas.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a right or the precautionary principle is engaged, whether the study or the process was unlawful, and how set the government is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participation in the impact study	15–35%	during review	low	On record; conditions or a redo
Recurso de amparo (Sala IV)	25–50%	weeks–months	none	Fast freeze; act suspended for rights violation
Contencioso-administrativo challenge (→ Sala I)	30–55%	1–4 yr	low–mod	Viability / concession annulled (Crucitas)
Complaint to the environmental tribunal (TAA)	20–45%	months–yr	low	Sanctions; works halted
Precautionary-principle argument	25–50%	varies	low	Project blocked while risk unresolved
Movement + national/international media	30–55%	months–yr	low	Political cost; project reconsidered
Everything together (rights/precaution, public watching)	40–65%	1–5 yr	low–mod	Annulled, frozen, delayed, banned
Everything together (government-backed, clean process)	20–45%	years	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **amparo** (fast and free) and the **contencioso courts** (which annulled Crucitas), reinforced by the **precautionary principle** and the movement. Crucitas shows the ceiling — a blessed project annulled, and open-pit mining banned nationwide. The honest floor is a defended government project, or a won fight later reopened, where a win must be actively protected.

*On cost: the **recurso de amparo before the Sala IV is free, requires no lawyer, and can be filed by anyone** — one of the most accessible constitutional tools in the world — and community fronts and environmental organisations bring expertise. Costa Rica's courts genuinely give ordinary people a way in.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this viability, this flaw, this right — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over protected areas, forest, water and rivers, Indigenous territory, and communities. **Protected areas, water, and the Article 50 right are your sharpest levers**, so this map is your most important document.
- 3. What stage is it at, and what's the next deadline?** Is the impact study in participation? Has SETENA granted viability, or MINAE the concession (opening the challenge)? An amparo can be filed the moment a right is threatened.
- 4. What does it still need that it lacks?** A viability not final, a concession not granted, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbours, the community front, environmental organisations, the affected municipality. Crucitas united a whole region's communities.

What this looks like in real life. A community learns a mine or dam is planned on forest and water, blessed by a government decree. The five questions yield: a foreign company behind it; a site on forest and water (the levers); a viability and concession granted, perhaps unlawfully; a project still needing final permits; and a coalition of the community front and conservation groups. That's the Crucitas pattern — pick apart every approval, file the amparo, and take the concession to the contencioso courts.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Crucitas the case was won by taking the government's own paperwork apart. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the environmental study, SETENA's viability resolution and its conditions, the MINAE concession, the decree, the forest and water permits. Costa Rica's access-to-information rights let you demand what isn't public. Then read the study and resolutions hard for flaws — an understated impact, a change to the project that should have triggered a fresh study (the Crucitas flaw), a permit granted during a moratorium, the precautionary principle ignored.

Layer two: the ground truth. Dated, located photographs and video of the site, the forest, the rivers, the wildlife — baseline images before any damage most of all — and the testimony of affected neighbours.

Layer three: the map of protections. Lay the project over protected areas, forest, water and rivers, and Indigenous territory, so each lever is visible. Walking into the Sala IV or the contencioso courts with the study, the resolutions, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental study, SETENA's viability and conditions, the MINAE concession, the decree, the forest and water permits** — from SETENA and MINAE; force out the rest under the access-to-information rules (8A).
- **Municipal land-use records** — from the municipality.
- **Ownership and financing** — company and investor records.

- **The protections map** — protected areas, forest, water and rivers, and Indigenous territory, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and neighbours' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Crucitas's north held together for the better part of two decades. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the land and water, a few tireless organisers, and respected local figures.

Form a front. The Costa Rican vehicle is the community front or committee — a named, organised group that speaks with one voice in the participation, the courts, the press, and the streets. Hold meetings where people see the evidence — the map of the project over the forest and water.

Bring in the experts and organisations — early. Reach Costa Rica's environmental organisations and the scientists who can dismantle a weak study (a single determined biologist helped sink Crucitas), and public-interest lawyers. The amparo is accessible enough that a supported community can file its own.

Build to last, and be ready to defend a win. Costa Rican fights can run for years, and — as Crucitas shows — a victory may later be reopened. Build clear roles, a secure shared archive, a way to decide together, a plan for the financial and emotional toll, and a plan to guard the win after it's won.

STEP 4: LEGAL CHALLENGES & THE PRECAUTIONARY PRINCIPLE

Law is Costa Rica's sharpest lever, because the courts are independent, the amparo is free and open to anyone, and judges take the environment seriously.

The Recurso de Amparo — Fast, Free, and Open to Anyone

Costa Rica's signature tool is the **recurso de amparo** before the **Sala Constitucional (Sala IV)**: a constitutional complaint that **anyone can file, free, without a lawyer, in plain language**, arguing that an act violates a right — here, the **Article 50 right to a healthy and ecologically balanced environment**. The Sala IV can order an act suspended fast. It won't win every case — at Crucitas the amparos were rejected and the win came through the contencioso courts — but it is the quickest way to freeze a threatened right, and it costs nothing to try.

The Contencioso-Administrativo Courts — the Crucitas Route

The route that annulled Crucitas is the **contencioso-administrativo** jurisdiction: a challenge to the legality of the official acts — SETENA's viability, the concession, the decree — before the administrative courts, up to the **Sala Primera**. The grounds are the familiar ones: a defective or outdated study, a permit granted during a moratorium, a process that skipped required public audience. These courts can **annul the whole approval** and order restoration and compensation, as they did at Crucitas.

The Precautionary Principle, the Tribunal, and Article 50

Costa Rican environmental law leans hard on the **precautionary principle** — where there's a risk of serious environmental harm, uncertainty is a reason to hold back, not to proceed. Argue it. The **Tribunal Ambiental Administrativo (TAA)** hears environmental complaints and can sanction and halt. And behind everything stands **Article 50**, the constitutional right that judges have used to build one of the strongest bodies of environmental jurisprudence in the Americas.

The Honest Limits

Straight talk: the courts are strong and have annulled blessed projects and backed national bans, but litigation can be slow; the amparo doesn't win every time; a determined government is a real opponent; and — the Crucitas caution — a court win can be undermined later by illegal activity or reopened by shifting politics. So use the strong tools — the amparo, the contencioso courts, the precautionary principle, the TAA — but pair them with the movement and the press, plan to defend a victory, and count an annulled viability or concession, a fast amparo freeze, delay, and a legislative ban as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A right becomes a fast freeze. Not "we don't want the mine" but *"this violates our Article 50 right to a healthy environment — we ask the Sala IV to suspend it."*

A document becomes an annulment. *"SETENA never required a fresh study after the project changed, and the concession was granted during a moratorium — the whole approval is unlawful."* (The Crucitas argument.)

Uncertainty becomes a barrier. *"The risk of serious harm is real and unresolved; the precautionary principle requires holding back."*

The harm becomes a public story. *"The forest, the river, the water our communities depend on — for a mine blessed by decree over our heads."*

Match it to the venue: the participation to SETENA; the rights violation to the Sala IV amparo; the unlawful acts to the contencioso courts; the human and the forest to the press.

STEP 5: MEDIA STRATEGY

In Costa Rica — a country that prides itself on its environment — publicity is power, and the Crucitas fight became a national cause. A free press, an engaged public, and a strong movement make the media front central.

Lead with people and place, not procedure. Not "SETENA's resolution was defective" but "the forest, the river, the water our communities depend on — for a mine blessed by decree over our heads." Use your strongest material: dated photographs, the map of the project over the forest and water, named neighbours, and any court win banked.

Work several audiences at once. Local and national press build political pressure; the environmental movement amplifies; international media reach the company's investors, and Costa Rica's green reputation is itself a pressure point. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action, and be aware that abandoned extractive sites can attract illegal,

dangerous activity.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Access-to-information request (to SETENA / MINAE).

Subject: Solicitud de información ambiental — [proyecto].

"Under the access-to-information rules, we, residents of [place], request the environmental study, SETENA's viability resolution and conditions, the MINAE concession, and the forest and water permits for [project] at [location]. [Contact.]"

8B — Participation in the impact study.

Subject: Observaciones — estudio de impacto ambiental de [proyecto].

"We, residents of [place], oppose the environmental viability of [project]: [the study understates the impact on our forest / water; a change to the project requires a fresh study; the precautionary principle applies]. We ask that viability be refused. [Attach evidence.]"

8C — Recurso de amparo (to the Sala IV).

Subject: Recurso de amparo — [proyecto] y el artículo 50.

"We file this amparo because [project] threatens our right to a healthy and ecologically balanced environment under Article 50: [specifics]. We ask the Sala Constitucional to suspend the act. [Attach evidence.]"

8D — Contencioso challenge (to a lawyer).

Subject: Recurso contencioso-administrativo — [proyecto].

"We instruct you to challenge, before the contencioso-administrativo courts, the [SETENA viability / MINAE concession / decree] for [project], on the grounds that [it was granted during a moratorium / no fresh study was required after project changes / required public audience was skipped]. [Attach the acts and our evidence.]"

8E — To a financier or investor.

Subject: Riesgo ambiental y legal — [proyecto].

"We understand your institution may be [financing] [project] at [location], which [threatens protected forest and water / faces active legal challenge]. We ask you to weigh this against your own environmental standards. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [forest / river / water] from [project].

"For generations the people of [place] have lived from [the forest / the river] at [location]. Now [project], by [company], threatens it — blessed by decree over our heads. We can provide photographs, documents, a map and interviews. [Contact.]"

8G — Complaint to the environmental tribunal (TAA) / Ombudsman.

Subject: Denuncia ambiental — [proyecto].

"We report that [project] [violates its conditions / threatens serious harm]: [specifics]. We ask the Tribunal Ambiental Administrativo [/ the Defensoría] to investigate and act. [Attach evidence.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our forest / river / water]. At Crucitas, the communities of the north annulled a gold mine a President had blessed — and helped ban open-pit mining nationwide. With the amparo, the contencioso courts, the precautionary principle, and the movement behind us, we have a real chance. Please join us: participate, share what you know, and stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Nail down the project and its footprint, and look for the levers.** Protected areas, water, forest, and the Article 50 right are your sharpest.
- 2. File a recurso de amparo before the Sala IV (8C) if a right is threatened — it's free, needs no lawyer, and can freeze the act fast.**
- 3. Participate in the impact study (8B), and request the documents (8A); read them for flaws.**
- 4. Photograph everything, with dates and places.** Baseline images before any damage matter most.
- 5. Get a lawyer for the contencioso challenge (8D) — the route that annulled Crucitas — and argue the precautionary principle.**
- 6. Form a front and go public (8F/8H).** Costa Rica's green identity is a real pressure point — and defend any win you get.

Even lean, those six use your rights, hit the fast amparo, build the record, and put a court case and a movement behind you.

WHEN THE SYSTEM IS TILTED

Costa Rica's tools are real, but the field can be tilted, and you must plan for it.

When the government blesses the project. A decree of "national interest" is not the end — Crucitas had one, and the courts annulled it. Use the contencioso courts, the amparo, and the precautionary principle, keep the movement alive, and make the blessing of an unlawful project a public cost.

When you must defend a win. This is the Crucitas caution: after the victory, illegal miners moved in and politicians later pushed to reopen the site. Guard your win — watch for illegal activity, resist reopening, and keep the coalition and the press engaged.

When the amparo doesn't carry it. The amparo won't win every case (it didn't at Crucitas). If it fails, the contencioso courts and the precautionary principle are your next, often decisive, ground.

What still works, and it's a lot. The free, open amparo before the Sala IV; the contencioso courts that annulled a blessed mine; the precautionary principle; the Article 50 jurisprudence; and a movement that turned one win into a national ban.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Costa Rica is, by regional standards, well-governed — but the closeness of powerful interests to a decision can bend it, and where it does, you expose it (the Crucitas court itself recommended investigating the officials involved).

How to spot it. Viabilities or concessions granted against the technical evidence; permits issued during a moratorium; a required public audience skipped; revolving doors; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Contraloría General** examines public money. The **Fiscalía** (including its environmental and anti-corruption units) handles graft and environmental crime. The **Defensoría de los Habitantes** takes complaints against the administration. The **courts** can annul a tainted act — and recommend prosecutions, as at Crucitas. And Costa Rica's **investigative press** has exposed captured approvals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Contraloría, the Fiscalía, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the levers aims it; organising builds the muscle; the amparo and the contencioso courts press the case; the media raises the cost. Together they multiply. One at a time, they stall — and remember to guard the win.

Early on (weeks 1–8): nail down the project, its footprint, and any protected area or water; file an amparo if a right is threatened; participate in the impact study; request the records; photograph the baseline; form a front and get a lawyer.

In the thick of it (months–years): take the viability, concession, or decree to the contencioso courts; press the precautionary principle and any TAA complaint; deepen the coalition and the expert critique; open the media front.

The long haul (years, and after): carry the case to the Sala Primera if needed; keep the movement and the pressure alive; hold the line for an annulled approval, a fast amparo freeze, delay, or a ban — and then defend the win against illegal activity and political reversal.

FINAL ASSESSMENT

Stopping a destructive project in Costa Rica can be done — the communities of the north annulled a gold mine a President had personally blessed, and helped ban open-pit metal mining across the country. Hold both truths. Costa Rica's tools are real and, in parts, unusually strong: a free, open recurso de amparo before an independent constitutional chamber; contencioso courts that annul unlawful approvals; a robust precautionary principle; and one of the Americas' strongest bodies of environmental jurisprudence under Article 50. And the constraints are real: slow litigation, an amparo that doesn't always carry it, determined governments, and — the Crucitas lesson — victories that must be actively defended.

Here's the discipline that wins. Find the protected areas, the water, and the flaw in the study or the concession — a change that needed a fresh study, a permit granted during a moratorium — and pry loose the record. File the free amparo the moment a right is threatened. Participate in the study, and take the unlawful acts to the contencioso courts, arguing the precautionary principle. Form a front, carry the story to a country proud of its environment — and then guard your victory, because a won fight can be reopened. Count an annulled approval, an amparo freeze, delay, and a ban as wins alongside a clean stop. That's what Crucitas did — the community front, the independent courts, and a right to a healthy environment that judges took seriously. So can you.